



CHAPTER cxv.

An Act to confer further powers upon the rural district council of Epsom for the regulation and control of the development of building estates and the laying out of new streets and in regard to buildings sewers and drains and for other purposes. A.D. 1930.
[10th July 1930.]

WHEREAS the rural district of Epsom in the county of Surrey (in this Act referred to as "the district") is under the jurisdiction of the rural district council of Epsom (in this Act referred to as "the Council") and comprises twelve parishes in many of which extensive building developments are proceeding for the control of which the existing powers of the Council under the Public Health Acts are insufficient:

And whereas it is expedient to make further and better provision with regard to the development of building estates the laying out of new streets the construction of buildings sewers and drains and for the improvement of the district:

And whereas it is expedient to authorise the making of town planning schemes as regards land which is wholly or partly developed in the district:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds

A.D. 1930. Acts 1872 and 1903 as amended and applied by section 55 of the Local Government Act 1929 have been observed and the consent of the Minister of Health has been obtained :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Epsom Rural District Council Act 1930.

Division of Act into Parts. 2. This Act is divided into Parts as follows :—

Part I.—Preliminary.

Part II.—Town planning.

Part III.—Streets and buildings.

Part IV.—Amenities.

Part V.—Sewers drains and sanitary provisions.

Part VI.—Finance.

Part VII.—Miscellaneous.

Incorporation of Lands Clauses Acts. 3. The Lands Clauses Acts except section 127 of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act.

Interpretation. 4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires— A.D. 1930.

“The district” means the rural district of Epsom;

“The Council” means the rural district council of Epsom;

“The clerk” “the treasurer” and “the surveyor” mean respectively the clerk the treasurer and the surveyor of the Council and respectively include any person duly authorised to discharge temporarily the duties of those officers;

“The Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending the same;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertaking or other property for the time being of the Council and the rates or contributions leviable by or on the order or precept of the Council;

“The general rate fund” and “the general rate” mean respectively the general rate fund and general rate of the district;

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“The deposited maps” means the maps signed in triplicate by Sir Thomas Robinson the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred of which one copy has been deposited in the office of the Clerk of the Parliaments in the House of Lords one copy has been deposited in the Committee and Private Bill Office of the House of Commons and the other copy has been deposited with the clerk at his office.

PART II.

TOWN PLANNING.

Power to make town planning schemes with reference to developed lands.

5. Subject to the provisions of this Act the Council may at any time and from time to time make a town planning scheme or town planning schemes with respect to any area in the district notwithstanding that the land or any part thereof is developed at the time of the making of such scheme and the provisions of the Town Planning Act 1925 shall subject to the provisions of this Part of this Act apply to the making of any such scheme and to any such scheme when made.

Purposes for which land may be purchased for town planning schemes under this Part of Act.

6. The purposes for which land may be purchased under a town planning scheme made pursuant to this Part of this Act shall include—

- (a) the purpose of improving and developing frontages to and developing lands abutting on or adjacent to any new street or any widening of an existing street; and
- (b) the purpose of securing the development or re-development of land in accordance with any provisions of the scheme where it appears to the Council that there would be difficulty in securing such development or re-development in the manner provided by those provisions by reason of the land concerned being used in a manner at variance therewith or being held in parcels or plots of inconvenient size shape or arrangement.

7.—(1) Section 92 of the Lands Clauses Consolidation Act 1845 shall not be incorporated in any order made under section 8 of the Town Planning Act 1925 authorising the Council to purchase lands compulsorily for the purposes of any town planning scheme made pursuant to this Part of this Act but if the owner of or any person interested in any house or other building or manufactory of which the Council have served upon him notice to treat in respect of a specified portion only shall within twenty-one days after the service of such notice by notice in writing to the Council allege that such specified portion cannot be severed from the remainder of the property without material detriment thereto the arbitrator to whom any question of disputed compensation is referred under any such order (in this section referred to as "the arbitrator") shall in addition to the other questions required to be determined by him determine whether the said specified portion of the property can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion for which the Council have compulsory powers of purchase) can be so severed.

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As to properties of which parts only are required for town planning schemes.

(2) If the arbitrator determines that the portion of the property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto such owner or other person as aforesaid may be required to sell and convey to the Council the portion so determined to be severable without the Council being obliged or compellable to purchase the whole the Council paying such sum for the portion taken by them including compensation for any damage sustained by the owner or other person by severance or otherwise as shall be awarded by the arbitrator.

(3) If the arbitrator determines that the portion of the property specified in the notice to treat can notwithstanding the allegation of such owner or other person as aforesaid be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the costs charges and expenses incurred by such owner or other person incident to the determination of any matters under this section shall be borne and paid by such owner or other person.

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(4) If the arbitrator determines that the portion of the property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Council may withdraw their notice to treat and thereupon they shall pay to such owner or other person as aforesaid all costs charges and expenses reasonably and properly incurred by him in consequence of such notice.

(5) If the arbitrator determines that the portion of the property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to such owner or other person as aforesaid all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit.

(6) The provisions of this section shall be stated in every notice given under any such order as aforesaid to sell and convey any premises.

Restriction
on rights of
purchase in
certain
cases.

8. The provisions of paragraph 2 of Part II of the Third Schedule to the Town Planning Act 1925 shall not apply in relation to any scheme made under this Part of this Act except in so far as they relate to any land which has been acquired by any company for the purposes of a railway dock or canal but the Council shall not be entitled to purchase compulsorily any land which is the property of any local authority or has been acquired by any company body or person for the purposes of a water or other public undertaking without the consent of such local authority company body or person but such consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Health.

Amendment
of restric-
tions on
acquisition
of land.

9. In its application to any town planning scheme made by the Council under the Town Planning Act 1925 in relation to land in the district required for the construction or improvement of any road (other than any land which is included in a scheme made under

the section of this Act of which the marginal note is A.D. 1930.
 “Power to make town planning schemes with reference to developed lands”) paragraph 2 of Part II of the Third Schedule to the Town Planning Act 1925 shall be read and have effect as if the words “on the first day of November one thousand nine hundred and twenty-nine formed” were inserted therein instead of the words “at the date of the order authorising the compulsory acquisition of the land forms” and as if the words “on such date was” were inserted therein instead of the word “is” where that word secondly appears.

10.—(1) No provisions in any town planning scheme made under this Part of this Act prescribing the space about buildings or limiting the number of buildings to be erected or prescribing the height or character of buildings within the meaning of subsection (2) of section 11 of the Town Planning Act 1925 shall operate so as— Limitation on requirements under scheme.

- (a) to require the demolition removal or alteration of any building existing at the date of the passing of the resolution of the Council to prepare or adopt the scheme or of which the erection was commenced before that date; or
- (b) to affect the user of any building for any purpose for which the same was used at the said date unless the person entitled to the user of the building shall after that date (i) commence to use such building for any purpose other than that purpose or (ii) voluntarily cease for a continuous period of six months or upwards to use such building for any purpose;

unless and until the scheme is brought into operation for that purpose by an order of the Council approved by the Minister of Health and where an order is so made the provisions of subsection (2) of section 11 of the Town Planning Act 1925 shall not operate so as to preclude a claim for compensation under that Act on account of the demolition removal or alteration of the building or the affecting of the purposes for which the building may be used.

(2) An order under this section shall specify the period within which any building to which the same

A.D. 1930. — relates is to be demolished removed or altered or any purpose for which any such building is used is to be discontinued or changed.

(3) Before applying to the Minister of Health for approval of an order under this section the Council shall serve a copy thereof on the owner or owners of all land or buildings to which the order relates and shall consider any representations which such owner or owners may make to them within such period (not being less than one month) as may be specified for that purpose in the order and may make such modifications in the order as they think necessary in consequence of any such representations.

(4) Upon the submission of the order (with or without modification) to the Minister of Health the Council shall serve on the said owner or owners a copy of the order as so submitted together with a notice that objections may be made to the Minister of Health within a period of one month from the date of service of the copy of the order and notice.

Registration
of owner-
ship of land
and service
of notices.

11. Any person being or claiming to be an owner of land within any area to which a scheme proposed to be made under this Part of this Act relates may register his name and address with the Council and any person who has so registered his name and address in relation to any land within any such area shall be entitled to be served at his last registered address with a copy of any notices required by any regulations made by the Minister of Health under the Town Planning Act 1925 or any Act repealed thereby to be given by the Council in connection with the preparation of the said scheme and notwithstanding anything in the said regulations it shall not be incumbent on the Council to serve a copy of any of such notices on any person who has not so registered his name and address except that in the case of a railway company a copy of such notices shall be sent to the secretary at the principal office of such company:

Provided that in any notice advertised by the Council pursuant to any such Act or regulations as aforesaid of their intention to prepare or adopt any such scheme as aforesaid or of the approval by the Minister of Health of any such scheme as aforesaid

they shall give notice of the effect of the provisions of this section. A.D. 1930.

12. For the purposes of the sections of this Act of which the marginal notes are respectively "Limitation on requirements under scheme" and "Registration of ownership of land and service of notices" the word "owner" has the same meaning as in the Lands Clauses Acts. Definition of "owner" for certain purposes.

PART III.

STREETS AND BUILDINGS.

13.—(1) Whenever application shall be made to the Council to approve the laying out of or notice shall be given to the Council of intention to lay out a new street within the meaning of their byelaws with respect to new streets the Council may require the owner of the estate or lands the development of which will be commenced or continued by the laying out of such new street to furnish the Council with plans sections and particulars showing the general scheme (if any) for the development or laying out of such estate or lands and in such case the date of the making of application or of the giving of notice as aforesaid shall for the purposes of any enactments or provisions in force for the time being with respect to the laying out of new streets be deemed to be the date on which plans sections and particulars required as aforesaid shall be so furnished. Development scheme may be required in connection with new streets.

(2) If after the submission of the plans sections and particulars referred to in subsection (1) of this section the Council shall approve the laying out of any such new street either unconditionally or subject to any modification of such plans sections and particulars neither the owner of the estate or lands nor his successors in title shall carry out the development of such estate or lands in such a manner as to conflict substantially with such plans sections and particulars as approved and if any such owner shall offend against the provisions of this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The said owner may at any time submit to the Council for their approval any alteration in the

A.D. 1930. — said plans sections and particulars and the Council may if they think fit approve such alteration.

(4) (a) Any person deeming himself aggrieved by any requirement of or by the Council under this section or by any modification required in the said plans sections and particulars by the Council or by any refusal on the part of the Council to approve any such alteration as aforesaid therein may within fourteen days from the date of such requirement appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(b) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court of summary jurisdiction may direct.

(5) Nothing in this section shall be deemed to authorise any contravention of any byelaw or statutory provision in force in the district.

Adjustment
of boun-
daries of
estates.

14.—(1) For the purpose of securing the proper laying out or development of any estate or lands in respect of or in connection with which plans for any new street within the meaning of the byelaws of the Council with respect to new streets are submitted to the Council for approval the Council may require that provision shall be made for adjusting and altering the boundaries of any such estate or lands or any lands adjacent or near thereto and for effecting such exchanges of land and the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands as may be necessary or convenient for such purposes and the provision so to be made and the terms and conditions upon which such provision is to be made shall failing agreement between the Council and the respective persons interested in such estate or lands be determined on the application of the Council or any such person by an arbitrator to be appointed by the Minister of Health and the Council may for securing the execution of any such purposes agree to pay and may and shall pay to any such person or persons such sums as may be agreed upon or in default of agreement be determined by arbitration as aforesaid Provided that the payment of money by any such person shall not be made a term or condition of any award made under this section otherwise than with his consent.

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(2) Any award made under the provisions of this section shall operate to effect any adjustment or alteration of boundaries or exchange of lands or the removal imposition or other regulation of covenants restrictions and conditions attaching to such lands which may be provided for by such award or be necessary for giving effect thereto and shall be duly stamped accordingly and the costs charges and expenses of any such arbitration shall unless and except in so far as the award shall otherwise provide be borne and paid by the Council.

(3) Any lands or moneys received by any person in or in respect of any adjustment or alteration of boundaries or exchange of lands under the provisions of this section shall be held by such person subject to the same trusts (if any) and any lands so received shall also be held subject to the same covenants restrictions and conditions (if any) so far as the same are applicable as the lands exchanged therefor. Where any such covenants restrictions or conditions shall in any case be agreed to be inapplicable or be determined by the arbitrator to be inapplicable the same shall be indicated in any agreement or award made under the provisions of this section.

(4) For the purpose of the adjustment or alteration of the boundaries of any such estate or lands as aforesaid the Council may themselves purchase any land and may sell or lease the land so purchased in whole or in part at such time or times at such price or prices and on such conditions as they may think fit or may appropriate the same for any public purpose approved by the Minister of Health and until such sale or appropriation may occupy manage or let the same or any part thereof in such manner as the Council may think reasonable.

15.—(1) The Council may prescribe the line of frontage of houses or buildings (in this section called “the building line”) to be observed in those parts of any street (not being a highway maintainable by any highway authority) already laid out upon which buildings have not already been erected.

Frontage
line in new
streets.

(2) It shall not be lawful without the approval of the Council to erect or bring forward in any such street any house or building or any part thereof or any addition to any house or building beyond or in front of the building line prescribed by the Council and any person offending

A.D. 1930. against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of section 3 of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been prescribed by the Council.

(4) In the event of the Council prescribing a building line at a greater distance from the centre of a street already laid out than the line at which buildings could be erected having regard to the provisions of the byelaws with respect to streets and buildings in force within the district or of the Public Health (Buildings in Streets) Act 1888 the Council shall make compensation to the owner of any land lying between the said distance from the centre of the street and the building line as set back for any damage sustained by him by reason of his being unable to build upon such land.

(5) For the purpose of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Council determine the centre of any street or intended street.

(6) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Lands Clauses Acts.

(7) Any person deeming himself aggrieved by any requirement of or by the Council under this section may within fourteen days from the date of such requirement appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court shall seem just.

(8) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

Rounding of
corners at
street junc-
tions.

16. The powers conferred upon the Council by section 17 of the Public Health Acts Amendment Act 1907 to vary the intended position of a new street so far as is necessary for the purpose of securing more direct easier or more convenient means of communication with any other street or intended street shall be extended so

as to enable them (subject to the provisions contained in that section) to require that the corners formed at the junction of a new street with another street (whether new or existing) shall be rounded off so as to be coincident with the arc of a circle tangential to the adjacent boundaries of the two streets and having such radius not being less than forty feet as may be determined by the Council.

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17.—(1) Where plans and sections of a new street have been deposited with and approved by the Council no person except with their consent shall in any such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for such person except with such consent to erect the building or any fence nearer to the centre of the street than the posts or other marks by which the width of the street has been so defined.

No building allowed until street defined.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

18.—(1) Upon the deposit of the plans of any new building intended or adapted for use as a dwelling-house (or where such plans have been approved before the passing of this Act but the erection of the building has not been begun at any time before such commencement) the Council may by notice in writing require the provision before the building is erected sold let or occupied (as the Council shall specify) of sufficient means of communication between the building and a street which is either a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with the byelaws for the time being in force with respect to new streets.

Means of access to buildings.

(2) If it appears to the Council to be necessary that the means of communication to be provided under this section shall be in the form of a street the Council may by their notice require a new street to be laid out and if the construction of such means of communication appears

A.D. 1930. — to them necessary they may by their notice require constructional work in connection with such means of communication not exceeding that required for a new street by the byelaws in force with respect to the construction of new streets.

(3) The Council may if they think fit contribute towards the cost of the provision of means of communication or of the work required under this section.

(4) Where notice of a requirement under this section has been given by the Council a person shall not begin to erect or proceed with the erection of any building to which the notice relates nor sell let or occupy such building (as the notice shall specify) until the notice of the Council has been complied with or until security has been given to the satisfaction of the Council that the notice will be complied with.

(5) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

(6) Any person aggrieved by any requirement of the Council under this section may appeal to a court of summary jurisdiction provided he give twenty-four hours' written notice of the appeal and of the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs.

(7) Notice of the right of appeal shall be endorsed on every notice communicating a requirement of the Council under this section.

Secondary
means of
access.

19. The power of the Council to make byelaws with respect to secondary means of access under section 23 of the Public Health Acts Amendment Act 1890 shall extend to enable them to require every person who shall erect fronting a street or intended street terraces or other continuous blocks of houses (being terraces or continuous blocks comprising not less than five separate houses) not giving access through their own grounds to the backs of such houses to make and construct a back and side roads at the back and at each end of such terraces or continuous blocks of houses of such widths as may be prescribed by such byelaws.

20.—(1) The powers of the Council under section 23 of the Public Health Act 1925 shall extend to enable them to require the lopping topping cutting or removal of any tree on or adjoining any highway which is in such a state or condition as to be likely to cause danger or obstruction to traffic by falling on to such highway. A.D. 1930
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Trees over-
hanging or
adjoining
highways.

(2) The powers conferred on the Council by this section shall not be exerciseable as respects any road which is referred to in subsection (2) of section 23 of the Public Health Act 1925 except with the consent of the county council of the administrative county of Surrey.

21. Every person who negligently or wilfully breaks throws down or otherwise damages any public lamp or lamp-post or street orderly bin or other receptacle for the temporary deposit and collection of dust ashes and rubbish or street sand bin being the property of the Council shall make full compensation to the Council for the damage done and such compensation to an amount not exceeding five pounds shall be recoverable summarily as a civil debt. Compensa-
tion for
injuring
lamps &c.

22.—(1) The Council may by order prohibit or restrict the erection of buildings intended or adapted for use as dwelling-houses on any land within the district which— Prohibition
on use of
unsuitable
land for
erection of
dwelling-
houses.

(a) is liable to flooding; or

(b) is unsuitable for buildings of that class by reason of the nature of the subsoil.

(2) Before any order made under this section shall come into force the Council shall submit the same to the Minister of Health for his approval and shall give notice of the proposals of the order by advertisement in a local newspaper circulating in the district and in the London Gazette and in such other manner (if any) as the said Minister may direct. The said notice shall name a place where copies of the order can be obtained free of charge and shall state a date (not being less than twenty-one days from the date of the notice) by which and the manner in which any person aggrieved by the order may make representations thereon to the said Minister and that any such person shall at the same time send a copy of his representations to the clerk.

(3) The Minister of Health shall consider any order submitted to him by the Council and any representations

A.D. 1930. thereon which may be duly made and may approve the order submitted to him with or without modifications or may disapprove the same.

(4) Before approving any order the Minister of Health may and if any representation is duly made and is not withdrawn shall (unless the representation appears to him to be frivolous) direct a local inquiry to be held under the provisions of this Act.

(5) The Council shall give at least fourteen days' notice of the intention to hold such local inquiry with particulars of any proposed order by advertisement in a local newspaper circulating in the district and shall also give similar notice in writing to each person who has duly made any representation and has not withdrawn the same.

(6) The order shall take effect as approved by the Minister of Health and shall come into force on a date to be fixed by him.

(7) The Council shall cause notice to be given of any order made under this section by advertisement in a newspaper circulating in the district and otherwise in such manner as may be prescribed by the Minister of Health.

(8) Any person who shall fail to comply with an order of the Council which has been approved with or without modification by the Minister of Health shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Further
power to
make bye-
laws as to
new build-
ings &c.

23.—(1) (a) For the purpose of assisting the Council in the exercise of the powers conferred upon them by this section a standing advisory committee of three members (in this section called "the advisory committee") shall be constituted for the district of whom one member shall be a Fellow of the Royal Institute of British Architects to be nominated by the President of the said institute one member shall be a Fellow of the Surveyors Institution to be nominated by the President of the said institution and one member shall be a justice of the peace to be nominated by the Council :

Provided that a member of the Council shall be disqualified from being a member of the advisory committee.

(b) Subject as aforesaid the members of the advisory committee shall be appointed by the Council and any vacancy occurring on the advisory committee shall be filled by the Council on the nomination of the person or body by whom the member causing the vacancy was nominated. The Council may pay the members of the advisory committee such reasonable fees and expenses as the Council think fit. A.D. 1930.
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(2) Section 157 of the Public Health Act 1875 is hereby extended so as to enable the Council to make byelaws providing in such manner as they may think necessary for the deposit by a person intending to construct—

- (a) a building within the district; or
- (b) an addition to or an alteration of an existing building within the district (including the reconstruction of an existing addition to any such building); or

- (c) a chimney in the district exceeding forty-five feet from the ground in height;

of drawings of the elevations and particulars as to the materials of such building addition alteration or chimney (in this section called collectively “elevations”).

(3) Where elevations are required to be submitted to the Council by a byelaw made under the said section 157 as extended by this section the Council shall within one month after the submission to them of the elevations—

- (a) approve the elevations; or
- (b) if they shall consider that having regard to the general character of the buildings in the district or of the buildings proposed therein to be erected or of the building upon or to which the addition is to be constructed or reconstructed or the alteration made the building addition alteration or chimney to which the elevations relate would seriously disfigure the street whether by reason of the height of the building addition alteration or chimney or its design or the materials proposed to be used in its construction refer the question of the approval of the elevations to the advisory committee for their decision

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thereon and the reference shall be accompanied by a statement of the grounds on which the proposed building addition alteration or chimney is considered to be objectionable.

(4) The Council shall forthwith send notice in writing to the person by whom the elevations were deposited of their approval thereof or if the building addition alteration or chimney is considered to be objectionable on any of the grounds mentioned in this section of the reference of the elevations to the advisory committee and the notice shall be accompanied by a statement of the objections to the building addition alteration or chimney.

(5) (a) The person by whom the elevations were deposited shall within fourteen days of his receiving notice of the reference to the advisory committee be entitled to send to the advisory committee a statement of his answers to the objections of the Council and if he does so he shall at the same time send a copy thereof to the clerk.

(b) (i) The advisory committee shall within one month after the receipt of the reference decide whether having regard to the considerations mentioned in subsection (3) (b) of this section they approve or disapprove the elevations and their decision shall be final and conclusive.

(ii) If the elevations are disapproved the decision of the advisory committee shall contain a statement of the grounds on which the proposed building addition alteration or chimney is considered to be objectionable.

(iii) In arriving at their decision the advisory committee may adopt such procedure as they think fit.

(6) The decision of the advisory committee shall be in writing signed by them and a copy of the decision shall as soon as may be after the determination of the reference be sent to the Council and to the person by whom the elevations were submitted.

(7) In the event of a division of opinion among the members of the advisory committee upon reference to them the matter shall be decided by a majority of votes of the members of the committee but save as aforesaid the advisory committee shall act by their whole number.

(8) Where the elevations of a building addition alteration or chimney have been disapproved under this section it shall not be lawful to erect the building

addition alteration or chimney until the elevations thereof have been approved by the Council and any person who acts in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1930.

(9) The costs of any reference to the advisory committee shall be paid as the advisory committee may direct. Where such costs or part thereof are payable by the person submitting the elevations they shall be recoverable by the Council summarily as a civil debt and where such costs or part thereof are payable by the Council they shall be recoverable by the person submitting the elevations in the like manner.

(10) The provisions of paragraph (b) of subsection (3) of this section shall not apply to a wooden hoarding which is used solely for the purposes of bill posting.

24. Nothing in this Part of this Act except the sections of which the marginal notes are— Saving for railway companies.

- “ Means of access to buildings ”;
- “ Secondary means of access ”;
- “ Trees overhanging or adjoining highways ”;
- “ Compensation for injuring lamps &c.”;
- “ Prohibition on use of unsuitable land for erection of dwelling-houses ”;

shall extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to any railway company in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by any such company with the authority of Parliament so long as any such building railway work or land is used or held by the said railway company primarily for railway purposes.

PART IV.

AMENITIES.

25.—(1) If at any time the Council having regard to the amenity of any part of the district are of opinion that any growing tree of a height of more than thirty feet or having a trunk of a girth of more than three feet at a height of five feet above the ground or any group of such trees. Preserva-
tion of trees.

A.D. 1930. trees ought to be preserved the Council may register the tree or group of trees and shall thereupon notify the owner and occupier of the land upon which the tree or group of trees is growing that the tree or group of trees has been registered and the register of trees so made shall be open to inspection by persons interested at all reasonable times.

(2) No person shall cut down lop top or wilfully destroy any tree registered by the Council under this section except—

(a) in pursuance of the provisions of section 65 of the Highway Act 1835 section 5 of the Telegraph (Construction) Act 1908 section 23 of the Public Health Act 1925 or section 34 of the Electricity (Supply) Act 1926; or

~~(b) where the tree has become dangerous; or~~

(c) to such an extent as may be necessary to prevent its constituting a nuisance to the owner or occupier of neighbouring lands; or

(d) to such an extent as may be necessary in pursuance of a right to abate a nuisance; or

(e) with the consent of the Council; or

(f) under an order of a court of summary jurisdiction under subsection (3) of this section:

Provided that if the Council do not notify their refusal to consent to the cutting down lopping topping or destruction of any registered tree within one month from the date of an application for consent their consent shall be deemed to have been given.

(3) Any owner or occupier of the land upon which a tree or group of trees is growing who is aggrieved by the refusal of the Council to consent to the cutting down lopping topping or destruction of any registered tree may appeal to a court of summary jurisdiction and the court may if they think just make an order authorising the cutting down lopping topping or destruction of the tree but any such order shall not affect any rights as between the owner and occupier of such land.

(4) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

(5) Nothing in this section shall apply to any tree or group of trees growing upon land used or held by a railway company for railway purposes or prejudice or affect the powers conferred upon justices by section 24 of the Regulation of Railways Act 1868. A.D. 1930.

(6) The Council shall make compensation to the owner of the land upon which any registered tree is growing who shall be injuriously affected by the refusal of the Council to consent to the cutting down lopping topping or destruction of any registered tree such compensation in case of difference to be settled in the manner provided by the Public Health Act 1875.

26.—(1) A petroleum filling station shall not be established on any land within the district which is coloured yellow or green on the deposited maps without the previous approval of the Council which approval may be given subject to such terms and conditions as the Council may think fit or may be withheld in order to preserve the amenities of any part of the district. Provided that in exercising their powers under this section the Council shall have regard to the need for reasonable facilities for the supply of petroleum in or near the part of the district which is coloured yellow and green on the deposited maps and Provided also that the Council shall not give their approval of the erection of a petroleum filling station in any area defined in byelaws made under section 11 of the Petroleum (Consolidation) Act 1928 without consultation with the county council of the administrative county of Surrey. Petroleum filling stations.

(2) The Council may with a view to securing the removal of petroleum filling stations established before the passing of this Act on any land within the district which is coloured yellow or green on the deposited maps serve upon any occupier of a petroleum filling station established thereon before the passing of this Act a notice requiring him to remove it within such period not less than six months after the service of the notice as may be specified in the notice and any such notice may be addressed to "the occupier" without further name or description and may be served either by delivering it at or leaving it at or sending it by post as a registered letter to the usual or last-known place of abode of the occupier or if his place of abode is not known by fixing it on some conspicuous part of the petroleum filling station. Provided

A.D. 1930. — that any person upon whom such a notice is served shall be entitled to recover from the Council any expenses reasonably incurred by him in carrying out the directions contained in the notice and shall if he makes a claim within twelve months after the service of the notice be entitled to recover from the Council compensation for any loss sustained by him in direct consequence of the requirements of the notice and any question or dispute as to whether compensation is payable under this subsection or as to the amount of any compensation so payable shall be determined by a single arbitrator appointed by agreement between the parties or in default of such agreement appointed by the Secretary of State.

(3) The occupier of any premises used or intended to be used as a petroleum filling station shall have power notwithstanding anything in any conveyance or in any lease or other agreement to do all such things as may be necessary for complying with the requirements of this section or any notice served under this section and where a notice has been served upon any person under this section the Council may with his consent do on his behalf anything necessary for complying with the requirements of the notice.

(4) Any person aggrieved by the withholding by the Council of their approval or the imposition of any terms and conditions under this section may within twenty-one days from the date of the decision of the Council appeal to a court of summary jurisdiction and such court may make such order in the premises and on such terms and conditions as to the court may seem meet. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

(5) Any person offending against the provisions of this section or failing to comply with any notice served under this section shall be liable on summary conviction to a fine not exceeding twenty pounds for every day on which the offence occurs or continues and if after any person has been so convicted in respect of an offence under this section or in respect of a contravention of any notice served under this section requiring the removal of a petroleum filling station the petroleum filling station is not removed within such time as the court may allow the Council shall have power to do all such acts as may be necessary for the removal thereof and any expenses

incurred by the Council in removing any petroleum filling station established in contravention of this section shall be recoverable from the person affected summarily as a civil debt. A.D. 1930.

(6) In this section the expression "petroleum filling station" has the same meaning as in the Petroleum (Consolidation) Act 1928.

(7) The provisions of this section—

(a) shall be in addition to and not in derogation of the provisions of section 11 of the Petroleum (Consolidation) Act 1928 and any byelaws made thereunder; and

(b) shall cease to apply to any land shown on the deposited maps as from the date upon which a town planning scheme relating to that land comes into force.

27.—(1) The Council may serve a notice on the owner or occupier of any land within the district in respect of any serious injury to the amenities of (a) any public open space within the district or (b) any land within the district which is coloured yellow or green on the deposited maps which may be caused by the display of advertisements on such land requiring him within a reasonable time to be specified in the notice to take such action and to execute such works including works of removal as may be necessary to abate the injury. Display of advertisements.

(2) If the person on whom the notice is served fails to comply therewith the Council may cause a complaint relating to the injury to be made to a court of summary jurisdiction and that court may issue a summons requiring the person to appear before them and if satisfied that the alleged injury exists may make an order requiring the person to comply with the requisition or otherwise to abate the injury and to do any works necessary for the purpose within a time specified in the order.

(3) If any person fails to comply with the requirements of subsection (2) of this section he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(4) Any order made under subsection (2) of this section may also empower the Council themselves

A.D. 1930. — to undertake the necessary works and to recover the cost from the person against whom the order is made if such person fails to comply with the order.

(5) The provisions of this section in regard to advertisements shall be in addition to and not in derogation of the provisions of the Advertisements Regulation Acts 1907 and 1925.

(6) Nothing in this section shall apply to—

(a) Advertisements upon land relating solely to any trade or business carried on or to any entertainment or meeting auction or sale to be held upon or in relation to such land or any property thereon and advertisements on the door or in the window of a building if the advertisements do not in either case contain letters figures or advertising emblems exceeding six inches in height and do not (except where affixed to and not projecting above a vertical wall of a building) exceed a height of twelve feet from the ground;

(b) (For a period of five years from the passing of this Act) hoardings or similar structures erected or in use for advertising purposes prior to that date and any advertisement displayed thereon during that period or any other advertisement displayed at the date of the passing of this Act;

(c) Advertisements on or upon any railway station yard platform or railway approach belonging to a railway company.

PART V.

SEWERS DRAINS AND SANITARY PROVISIONS.

Separate
sewers for
sewage and
surface
water.

28.—(1) The Council may from time to time by resolution declare that any sewer or sewers for the time being belonging to them shall be appropriated and used for surface water only or for sewage only.

(2) Where in any street provision has been made for separate sewers for surface water and for sewage as aforesaid no sewage shall be allowed to pass into the surface water sewer and so far as practicable no surface or storm water shall be allowed to pass into the sewage sewers.

(3) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1930.

(4) In the case of any house or premises existing at the time of the provision or appropriation of separate sewers as aforesaid the drains whereof would but for the passing of this Act have been sufficient effectually to drain such house or premises the Council shall at their own expense make all necessary alterations to the drains and pipes of such house or premises in order to keep separate the sewage and surface water drainage thereof and no penalty shall be incurred under this section in the case of such house or premises until the completion of such alterations as aforesaid.

29.—(1) If it appears to the Council that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Council may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Council if they so decide or by the owners in such manner as the Council shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Council shall determine and if such drain is constructed by the Council such costs and expenses may be recovered by the Council from such owners subject to a right of appeal under subsection (4) of this section. Combined drains.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Council shall not except by agreement with the owners exercise the powers conferred by this section in respect of any house for the drainage of which plans shall have been previously approved by them.

(4) Any person deeming himself aggrieved by the amount of any costs and expenses proposed to be recovered by the Council under this section or the

A.D. 1930. — amount to be borne and paid by him may appeal to a court of summary jurisdiction provided that such appeal be made within two months from the date of the service of notice by the Council intimating the amount payable or their apportionment thereof. On any such appeal the court may and is hereby empowered to make such order in the premises and on such terms and conditions as to the court may seem just. The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

As to houses connected with single private drain.

30.—(1) Where two or more houses or premises are connected with a single private drain which conveys their drainage into a public sewer or into a cesspool or other receptacle for drainage the Council shall have all the powers conferred by section 41 of the Public Health Act 1875 and the Council may recover any expenses incurred by them in executing any works under the powers conferred on them by that section from the owners of the houses or premises in such proportions as shall be settled by the surveyor or (in case of dispute) by arbitration under the Public Health Act 1875 or by a court of summary jurisdiction and such expenses shall be recoverable summarily as a civil debt or the Council may declare them to be private improvement expenses and may recover them accordingly.

(2) Section 19 of the Public Health Acts Amendment Act 1890 shall cease to be in force within the district.

(3) For the purposes of this section the expression "drain" includes a drain used for the drainage of more than one building whether owned or occupied by the same person or not.

Prescribing distance between cesspools and houses.

31.—(1) Any person who (without the consent of the Council) shall commence to erect any new building intended or adapted for use as a dwelling-house any part of which is within fifty feet from a cesspool constructed or made on land of which he is the owner or lessee shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(2) (a) Any person deeming himself aggrieved by the withholding of the consent of the Council under this section may within fourteen days from the date

when notification of the withholding of such consent is received by him appeal to a court of summary jurisdiction and such court may and is hereby empowered to make such order in the premises and in such terms and conditions as to the court may seem just. A.D. 1930.

(b) The costs of any such appeal shall be paid in such manner and by such parties to the appeal as the court may direct.

32.—(1) The Council may by notice in writing require the owner or occupier of any dwelling-house warehouse or shop in any part of the district in which they may for the time being have undertaken or contracted for the removal of house refuse from premises to provide portable covered galvanised iron dustbins in lieu of ashpits or ashtubs or other receptacles for refuse and such dustbins shall be of such size and construction as may be approved by the Council. Regulation dustbins.

(2) Every owner or occupier having provided any receptacle pursuant to this section shall maintain the same in good order and condition.

(3) Provided that the foregoing provisions of this section shall not apply to any ashtubs or other receptacles for refuse in use at the passing of this Act so long as the same are of suitable material size and construction and in proper order and condition.

(4) From and after the passing of this Act it shall not be lawful for any person to use any dustbin or ashtub for any purpose other than the deposit of dust ashes or other house refuse (not being of a liquid or partly liquid character) intended for removal by or on behalf of the Council.

(5) The owner or occupier of all premises in connection with which a dustbin has been provided as required by this section shall if so required by the Council pay to the Council on each first day of April after such provision such sum not exceeding five shillings as the Council may from time to time by resolution determine for or towards the maintenance repair and renewal by them of such dustbin. Such payments shall be in satisfaction of the obligation of such owner or occupier in regard to the maintenance of such dustbin.

(6) Any owner or occupier who fails within fourteen days after notice given to him to comply with the

A.D. 1930. requirements of the Council under subsection (1) of this section or who fails to comply with his obligation under subsection (2) of this section as the case may be shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings and any person contravening the provisions of subsection (4) of this section shall be liable to a penalty not exceeding ten shillings and to a daily penalty not exceeding ten shillings.

Discontinu-
ance of
offensive
trade.

33.—(1) In any case where premises are being used for the carrying on of an offensive trade within the meaning of the Public Health Acts and in the opinion of the Council it is inexpedient in the interests of public health that such trade should be carried on in such premises the owner or occupier of the same may be required after six months' notice in writing by the Council under the hand of the clerk to cease to use such premises for the carrying on of such offensive trade. Provided that the formation or expression by the Council of an opinion under this subsection shall be deemed to be a determination of the Council within the meaning of the section of this Act of which the marginal note is "As to appeal" and that the provisions of that section shall accordingly apply with respect to such opinion as well as to any requirement by the Council under this subsection.

(2) Any person who fails or neglects to comply with the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Council require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person such compensation for any loss sustained by him in consequence of the action of the Council as may be agreed upon between the Council and such person or as failing agreement shall be determined by arbitration under the provisions of the Arbitration Act 1889. Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Council shall have been given for a period only unless the Council shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) The powers of this section shall be in addition to and not in derogation of the existing powers of the Council with reference to offensive trades. A.D. 1930.

PART VI.

FINANCE.

34.—(1) The Council may from time to time independently of and in addition to any other borrowing power borrow at interest for the purpose of paying the costs charges and expenses of obtaining this Act as hereinafter defined such sum as may be requisite and in order to secure the repayment of the said sum and the payment of interest thereon they may mortgage or charge the revenues of the Council and they shall pay off all moneys so borrowed within the period of five years from the passing of this Act. Power to borrow.

(2) (a) The Council may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister of Health and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Council may mortgage or charge the revenues of the Council or such fund or rate as the Minister of Health may prescribe.

35. The Council may raise all or any moneys which they are authorised to borrow or re-borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Mode of raising money.

36. Sections 236 237 238 and 239 of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act. Provisions of Public Health Act 1875 as to mortgages to apply.

A.D. 1930.

Application
of moneys
borrowed.Mode of
payment off
of money
borrowed.Power to
re-borrow.

37. All moneys borrowed by the Council under any statutory borrowing power shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

38. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined and the payment of the first instalment shall be made within twelve months or when the moneys are repaid by half-yearly instalments within six months from the date of borrowing.

39.—(1) The Council shall have power—

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended forthwith to be repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

- (c) out of moneys derived from the sale of land; or A.D. 1930.
(d) out of any capital moneys properly applicable to
the purpose of the repayment other than moneys
borrowed for that purpose.

40.—(1) The clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Council under any statutory borrowing power.

Return to
Minister of
Health with
respect to
repayment
of debt.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister of Health may require and shall if so required by him be verified by statutory declaration of the clerk or other the chief accounting officer of the Council and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Council shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision (other than the foregoing provisions of this section) of any enactment now in force

A.D. 1930. — in the district requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

Expenses of execution of Act.

41. All expenses incurred by the Council in carrying into execution the provisions of this Act except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for may be paid out of the general rate fund and general rate.

PART VII.

MISCELLANEOUS.

Penalty on occupiers refusing execution of Act.

42. If the occupier of any house or part of a house or premises shall prevent the owner thereof from carrying into effect any requirement of the Council under Part III (Streets and buildings) Part IV (Amenities) or Part V (Sewers drains and sanitary provisions) of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding forty shillings and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Power of entry.

43. The provisions of sections 102 and 103 of the Public Health Act 1875 shall extend and apply to the purposes of the provisions of Part III (Streets and buildings) Part IV (Amenities) or Part V (Sewers drains and sanitary provisions) of this Act as if those purposes had been mentioned in the said section 102.

General provisions as to byelaws.

44. The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by a rural sanitary authority shall apply to byelaws authorised to be made by the Council under the powers of this Act.

45. Where in any legal proceedings taken by or on behalf of or against the Council or any officer servant solicitor or agent of the Council or any committee of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution or order of the Council or any resolution order or report of any committee of the Council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the chairman of the Council or of the clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

A.D. 1930.
 —
 Evidence of
 appointments
 authority
 &c.

46. Where under this Act or under any general or local Act for the time being in force in the district the Council give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

As to breach
 of condi-
 tions of
 consent of
 Council.

47. Where under the provisions of this Act or any local Act in force in the district the Council shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportion-
 ment of
 expenses in
 case of joint
 owners.

48. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Damages
 and charges
 to be settled
 by court.

A.D. 1930.
—
Recovery of
demands.

49. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

As to
appeal.

50. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer of the Council under the provisions of Parts III IV or V of this Act or by any order made by a court of summary jurisdiction under the provisions of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order made by a court of summary jurisdiction the Council may in like manner appeal.

Several
sums in one
summons.

51. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the district any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Informa-
tions by
whom to
be laid.

52. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaw made thereunder may be laid and made by any officer of the Council duly authorised in that behalf or by the clerk or by any police officer acting for or within the district.

Authentica-
tion and
service of
notices.

53.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in

force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business. A.D. 1930.
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54. All consents given by the Council under the provisions of this Act or of any local Act Order byelaw or regulation for the time being in force within the district shall be given in writing and unless otherwise prescribed shall be given under the hand of the clerk or other duly authorised officer of the Council. Consents of Council to be in writing.

55. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

56. All penalties recovered on the prosecution of the Council or any officer of the Council on their behalf under this Act or any byelaw thereunder shall be paid to the treasurer and be by him carried to the credit of the general rate fund or to such other fund as the Council shall direct. Penalties to be paid over to treasurer.

57. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. Compensation how to be determined.

58. All powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Powers of Act cumulative.

A.D. 1930. — Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

Application of Arbitration Act 1889. **59.** Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be subject to the provisions of the Arbitration Act 1889.

Saving for indictment &c. **60.** Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Inquiries by Minister of Health. **61.**—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consent under this Act and the inspectors of the Ministry of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(2) The Council shall pay to the Minister of Health any expenses incurred by the Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister not exceeding five guineas a day for the services of such inspector.

Application of section 265 of Public Health Act 1875. **62.** Section 265 of the Public Health Act 1875 shall extend and apply to the purposes of any local enactment as if the same were re-enacted therein.

Judges not disqualified. **63.** A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or any other Act or Order from time to time in force within the district by reason of his being liable to any rate.

64. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands without the consent in writing of those commissioners on behalf of His Majesty first had and obtained for that purpose.

A.D. 1930.
—
Crown rights.

65. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council in the first instance out of the general rate fund and general rate but ultimately out of moneys to be borrowed under the authority of this Act for that purpose.

Costs of Act.

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